

		Code § 1033.5(a)(3) (<i>italics added</i>). Cohen’s request to tax costs incurred for a cancelled deposition and for video recording of depositions is denied. <u>Growthpoint shall recover \$177,771.56 in deposition costs from Cohen.</u> Growthpoint Global, Inc. to give notice.
5	Escorcia v. The Foster Printing Company, Inc. 2023-01303441	<u>Plaintiff’s Motion for Final Approval of Class</u> Plaintiff did not file the supplemental declaration ordered by the court in the August 27, 2026 order. ROA 141. Accordingly, the hearing on plaintiff’s motion for final approval of a class action and PAGA settlement is continued to <u>January 28, 2027 at 2:00 p.m.</u> in Department CX105. Plaintiff is ordered to file the supplemental declaration described in the court’s August 27, 2026 order at least 9 court days before the hearing. Clerk to give notice.
6	Jee v. Eplex Entertainment, Inc. 2023-01336144	<u>Plaintiff Heili Jee’s Motion to Compel Deposition</u> Plaintiff Heile Jee moves to compel Hwami Lee to appear for deposition. No oppositions have been filed. For the following reasons, plaintiff’s motion is granted. Plaintiff asserts Lee is defendant Eplex Entertainment, Inc.’s Chief Executive Officer, Secretary and Chief Financial Officer. Brief (ROA 286) at 3:20-21. Plaintiff provides no evidence supporting this assertion, but defendant did not file an opposition and thus has not disputed plaintiff’s representation. Service of a deposition notice on a corporate party is effective to require “an officer, director, managing agent, or employee of a party” to attend and testify at a deposition. Civ. Proc. Code § 2025.280. On March 19, 2026 plaintiff served defendant’s counsel with a deposition notice for Lee; plaintiff noticed the deposition for April 21, 2026. Azat Decl. (ROA 286) Ex. B. Lee did not serve objections to the deposition notice, did not move to quash the notice, did not move for a protective order and did not appear for the deposition. <i>Id.</i> ¶¶ 6-7. Civil Procedure Code section 2025.450(a) states: “If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” Code Civ. Proc. § 2025.450. As noted, no oppositions to plaintiff’s motion have been filed. Neither defendant nor anyone else has provided any reasons